

CORY LEA SHEPHERD (Appellant) v WORKERS' COMPENSATION REGULATOR (Respondent)

OUTLINE OF EVIDENCE — CORY LEA SHEPHERD (Appellant)

Served under direction 2 of the Further Directions Order (3) dated 19 August 2026; not filed. This outlines the topics on which the witness will give oral evidence. It is not a statement of evidence and is not verified.

1. Employment. He commenced employment with Metro South Hospital and Health Service at the Logan Hospital Switchboard in [MONTH] 2019, was converted from temporary to permanent employment with effect from 3 March 2021, and is classified as a continuous shift worker. On 31 August 2023 he applied to increase his hours to full time; the application was approved on 27 September 2023 and he commenced full-time hours on 16 October 2023. *[Form 20 affidavit filed 23.06.2026, ¶¶3–5; Taylor email "Approved – Permanent Full Time FTE", 27.09.2023]*

2. The role. The position requires continuous shift work over the full 24-hour period, seven days a week. Its duties include participating in the Emergency Response process — receiving emergency response notifications and distributing them to the response groups according to the category of emergency, per emergency code procedures, "strictly adhering to protocols and timeframes"; maintaining "call queues to minimum at all times"; and multitasking "under pressure, particularly where high volume call traffic is concerned". He will give evidence of the systems he operates concurrently, of call and emergency-code volume across a shift, and of the pager and on-call roster records on which the hospital's emergency paging depends. *[AO3 Switchboard Role Description, served by the employer 31.07.2026; Form 24 Notice ¶8 — admitted]*

3. The roster of 17–18 March 2024. He was rostered to finish at 23:00 on 17 March 2024 and to commence his next shift at 06:00 on 18 March 2024. He will give evidence of the shifts he worked, his travel to and from work, the rest actually available to him between those shifts, and performing the duties at paragraph 2 on 18 March 2024. He took leave on 19 March 2024. *[Form 24 Notice ¶¶1, 3 — admitted; SOFC ¶¶22(a), 22(c)]*

4. August 2023. He will give evidence of the concerns he raised in writing on 7 August 2023, the meeting that followed, and the response he received — including the acknowledgement in Ms T Reese's email of 7 August 2023 that "there was a rostering error that was accidentally made by Chloe with regards to night shifts". *[Form 24 Notice ¶5 — admitted]*

5. February 2024 — the leave applications. He will give evidence of applying for special pandemic leave in February 2024 (process reference 15480560): how many times he submitted it, what he attached each time, the declines, and the approval given on the same material. *[SOFC ¶¶14(c)–(f) — "a review indicates that in fact, the attachments were present on the appellant's submission"; myHR leave record, employer production Item 11]*

6. May 2024 — the pay correction. He will give evidence of the shift payments in issue, what he was told about their correction, and when the correction was made. *[Form 24 Notice ¶¶40, 41, 46 — admitted: payroll's instruction of 3 May 2024 to "submit an AVAC to correct these shifts"; the email of 21 May 2024, 12:33 pm — "I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC"; the AVAC submitted 28 May 2024]*

7. What he raised, and to whom. He will give evidence of the matters he raised with his line manager and the Director between June 2023 and June 2024, when and how he raised them, what was asked of him in response, and what he was told — including his email of 16 June 2023 recording "no consultation of the team members or the department when making major changes such as additional shift... commence/finish [times]", the matters raised again on 15 May 2024, and the request made of him on 21 May 2024 to identify the directives about which he had consultation concerns. He will give evidence of what changed at the Switchboard in consequence. *[Form 20 affidavit ¶¶26–30, 32]*

8. Onset and first presentation. He will give evidence of the symptoms he experienced and when; of the onset date of 18 June 2024; of attending his general practitioner on 1 July 2024; and of lodging his application for compensation on 1 July 2024. He offers no clinical or diagnostic opinion. *[Work Capacity Certificate of Dr P Hawes, signed 08.09.2024 — patient first seen for this injury 01.07.2024; SOFC ¶25]*

9. Other pleaded matters. He will give evidence of the remaining matters pleaded in his Amended Statement of Facts and Contentions filed 7 April 2026, in the order pleaded.

10. Documents. He will identify and produce the rosters and payslips for the relevant periods; his emails and text messages with his line manager and the Director; the leave and payroll records produced by the employer; the role description; and the letter of Metro South Hospital and Health Service dated 5 June 2026 (ref K-LM26/729).

Dated _____ September 2026. **Cory Lea Shepherd**, Appellant, self-represented.